

25STCV32063 25STCV32063

County: los-angeles

Division: Civil Law and Motion

Department: 224

Hearing date: 2026-08-26

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Case Number: 25STCV32063 Hearing Date: August 26, 2026 Dept: 224

Rosson v. Flynt Management Group, LLC

TENTATIVE RULING

The motion is GRANTED IN PART and DENIED IN PART. Plaintiff is ordered to arbitrate all claims against FMG, except that the request for public injunctive relief under the second cause of action is not arbitrable and remains in this Court.

The action is stayed pending completion of the arbitration. (Code Civ. Proc., § 1281.4.)

The Court sets a Post-Arbitration Status Conference for July 30, 2027 at 8:30 a.m. A Joint Status Report is due 5 court days in advance.

ANALYSIS

Motion to Compel Arbitration

Defendant Flynt Management Group, LLC ("FMG") moves the Court for an order compelling Plaintiff to: (i) submit his claims set forth in his Complaint against Defendant to binding arbitration in lieu of court proceedings; and (ii) stay the instant lawsuit pending completion of such arbitration.

Introduction

On November 3, 2025, Plaintiff Jesse Rosson filed the Complaint in this action against Defendant Flynt Management Group, LLC.

On January 26, 2026, Defendant Flynt Management Group, LLC filed the instant Motion to Compel Arbitration and Stay Action.

On August 13, 2026, Plaintiff filed an Opposition to the Motion.

On August 19, 2026, Defendant filed a Reply in support of the Motion.

Legal Standard

In a motion to compel arbitration, the moving party must prove by a preponderance of evidence the existence of the arbitration agreement and that the dispute is covered by the agreement. The burden then shifts to the resisting party to prove by a preponderance of evidence a ground for denial (e.g., fraud, unconscionability, etc.). (Rosenthal v. Great Western Fin. Securities Corp. (1996) 14 Cal.4th 394, 413-414; Hotels Nevada v. L.A. Pacific Center, Inc. (2006) 144 Cal.App.4th 754, 758.)

Generally, on a petition to compel arbitration, the court must grant the petition unless it finds either (1) no written agreement to arbitrate exists; (2) the right to compel arbitration has been waived; (3) grounds exist for revocation of the agreement; or (4) litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (Code Civ. Proc., § 1281.2; Condee v. Longwood Management Corp. (2001) 88 Cal.App.4th 215, 218-219.)

"California has a strong public policy in favor of arbitration and any doubts regarding the arbitrability of a dispute are resolved in favor of arbitration." (Coast Plaza Doctors Hospital v. Blue Cross of California (2000) 83 Cal.App.4th 677, 686.) "This strong policy has resulted in the general rule that arbitration should be upheld unless it can be said with assurance that an arbitration clause is not susceptible to an interpretation covering the asserted dispute." (Ibid. [internal quotations omitted].) This is in accord with the liberal federal policy favoring arbitration agreements under the Federal Arbitration Act ("FAA"), which governs all agreements to arbitrate in contracts "involving interstate commerce." (9 U.S.C. § 2, et seq.; Higgins v. Superior Court (2006) 140 Cal.App.4th 1238, 1247.)

The Existence of an Agreement

A party to an arbitration agreement may seek a court order compelling the parties to arbitrate a dispute covered by the agreement. (CCP § 1281.2) The party seeking arbitration has the initial "burden of proving the existence of a valid arbitration agreement by a preponderance of the evidence, while a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense." (Ruiz v. Moss Bros. Auto Group, Inc. (2014) 232 Cal.4th 836, 842.) A moving party meets its initial burden by showing the agreement at issue exists, and need only establish its validity on challenge by opponent. (HM DG, Inc. v. Amini (2013) 219 Cal.App.4th 1100, 1114; Espejo v. Southern Calif. Permanente Med. Group (2016) 246 Cal.App.4th 1047, 1060.)

Defendant relies on the Employer-Employee Arbitration Agreement (the "Agreement") attached as Exhibit A to the Declaration of Karen Saidiner. (Saidiner Decl., Ex. A.) The Agreement identifies its parties as "El Dorado LF LLC dba HUSTLER Casino ('Employer') and its employees," who agree to:

"arbitrate any and all disputes, claims or controversies ('Claims') they may have against each other, including their current and former agents, owners, officers, directors, or employees, which arise from the employment relationship between employee and employer or the termination thereof." (Id.)

The Agreement is signed by Plaintiff (as Jesse Rivera) and by an authorized representative of El Dorado, dated September 9, 2022; the Complaint acknowledges Plaintiff "signed an arbitration agreement with El Dorado LF, LLC dba Hustler Casino, not with Flynt Management Group, LLC." (Complaint, ¶ 39; Saidiner Decl., Ex. A.)

Here, the parties do not dispute the existence of the Arbitration Agreement. Plaintiff concedes the Agreement is valid and enforceable and is presently arbitrating employment claims under it against El Dorado before JAMS.

"With respect to the moving party's burden to provide evidence of the existence of an agreement to arbitrate, it is generally sufficient for that party to present a copy of the contract to the court." (Baker v. Italian Maple Holdings, LLC, 13 Cal. App. 5th 1152, 1160 (2017).)

An agreement to arbitrate exists. The dispute is covered by the Agreement. Plaintiff does not dispute the existence of an agreement. The sole question is whether FMG, a non-signatory, may enforce it.

Agency/Equitable Estoppel

The parties dispute whether Defendant FMG may compel arbitration as a non-signatory under the principles of agency and equitable estoppel.

Equitable Estoppel

Equitable estoppel binds a plaintiff to arbitrate claims that are "intimately founded in and intertwined with the underlying contract obligations" and that are "based on the same facts and are inherently inseparable from the arbitrable claims against signatory defendants." (Garcia v. Pexco, LLC (2017) 11 Cal.App.5th 782, 786; JSM Tuscany, LLC v. Superior Court (2011) 193 Cal.App.4th 1222, 1241.) The inquiry turns on the nature of the plaintiff's claims, not on extrinsic proof of the parties' relationship. (Jones v. Jacobson (2011) 195 Cal.App.4th 1, 20; Gonzalez v. Nowhere Beverly Hills LLC (2024) 107 Cal.App.5th 111, 119.)

Every cause of action here arises from Plaintiff's employment at the Casino and his separation from it. Plaintiff further ties FMG to that employment relationship at every turn. Plaintiff alleges he "was a human resources manager at Flynt Management Group" (Complaint, ¶ 6); that FMG "concealed its role as Plaintiff's true employer while exercising control over his employment conditions" (Complaint, ¶ 41); and that FMG "acted as an employer of Plaintiff, and is directly liable under the FEHA" (Complaint, ¶ 48). His FEHA, retaliation, harassment, and constructive-discharge allegations rest on the conduct of FMG's executives toward him during his employment (Complaint ¶¶ 32-38, 45-46), and his wage claim alleges FMG "improperly classified Plaintiff as an exempt employee" and failed to pay him (Complaint ¶¶ 59-61.) These are claims arising from "the employment relationship between employee and employer or the termination thereof." (Saidiner Decl., Exh. A.)

Where a plaintiff alleges a non-signatory is his employer, his claims are intertwined with the employment agreement as a matter of law, because the alleged employer's obligations derive from the employment relationship, "whose obligations flow from the agreement." (Gonzalez, supra, 107 Cal.App.5th at pp. 123, 128.) A plaintiff cannot hold a non-signatory liable as his employer while disclaiming the arbitration agreement that governs that employment. (Id. at pp. 118, 126.) Plaintiff does exactly that. Here, Plaintiff may not plead FMG as his true employer, controlling his workplace and directing the decisions at issue, and simultaneously treat FMG as a stranger to the Agreement.

Plaintiff's counterarguments fail. That his claims sound in statute does not defeat estoppel. The mere fact that claims are styled as statutory violations does not insulate them from the intertwining analysis. The dispositive question is whether the plaintiff actually relies on the employment agreement's terms to make out the claim, not merely whether the employment relationship serves as the factual backdrop. Plaintiff's claims do not merely unfold against the backdrop of his employment – they depend on it. Each cause of action requires Plaintiff to establish that FMG stood in an employer relationship to him: the FEHA claim rests on FMG's asserted role as employer or as a "person" managing and directing his employment (Complaint, ¶¶ 44-48); the wage claim rests on FMG's asserted status as the employer who classified and failed to pay him (Complaint, ¶¶ 59-61); and the UCL claim is predicated in part on those same employment-law violations (Complaint, ¶ 53). FMG's obligations on each of these claims derive from the employment relationship, and that relationship is defined and governed by the Agreement. (Gonzalez, supra, 107 Cal.App.5th at pp. 123, 128.)

Ford Motor Warranty Cases (2025) 17 Cal.5th 1122 is distinguishable. Ford held estoppel inapplicable to a vehicle manufacturer that was a stranger to the dealership sales contracts and whose warranty obligations existed independently of them; the buyers neither sued on the contract nor sought any benefit from it. (Id. at pp. 1126-1128, 1137-1138.) Ford

reaffirmed the "intimately founded in and intertwined with" test. (Id. at p. 1131.) FMG is not akin to the Ford manufacturer. Plaintiff alleges the relationship with FMG is the employment relationship the Agreement governs. Ford does not address the employer context and, if anything, confirms the test estoppel satisfies here.

Likewise, the Court finds that *Soltero v. Precise Distribution, Inc.* (2024) 102 Cal.App.5th 887 does not control. Gonzalez expressly considered and disagreed with Soltero, "sid[ing] with Garcia," and explained that a plaintiff's statutory claims against an alleged employer are intertwined with the employment agreement because the employer's obligations flow from that relationship. (Gonzalez, *supra*, 107 Cal.App.5th at pp. 126, 128.) Soltero is also factually distinguishable, as the Soltero plaintiff did not sue her signatory employer at all and pleaded nothing tying the non-signatory to that agreement. Here, by contrast, Plaintiff signed the Agreement with his direct employer, is arbitrating under it, and affirmatively pleads FMG as his employer who controlled his employment.

The Agreement's "individual basis" and "claims between Employee and Employer alone" language does not bar enforcement. That language is a class-and-representative-action and joinder limitation governing how covered claims proceed; it does not preclude a non-signatory whom Plaintiff has alleged to be his employer from invoking the Agreement under estoppel. Gonzalez enforced comparable language. The Court notes that FMG's opening papers misquoted the Agreement as reaching "affiliated entities, successors, or assigns" (Mot. at p. 7) – language FMG concedes does not appear in Exhibit A. However, that misstatement is immaterial, because the operative employment-relationship language plus Plaintiff's own employer allegations supply the basis for estoppel.

Agency

The agency exception applies where the plaintiff alleges the non-signatory acted as, or in connection with, a party to the agreement. (Garcia, *supra*, 11 Cal.App.5th at p. 788; *Cohen v. TNP 2008 Participating Notes Program, LLC* (2019) 31 Cal.App.5th 840, 863; *Thomas, supra*, 204 Cal.App.4th at pp. 614-615.)

The Complaint alleges an integrated structure in which FMG's CEO and human-resources personnel managed the Casino's employment functions, made staffing decisions, and directed the retaliatory conduct against Plaintiff. (Complaint, ¶¶ 18, 22-24, 34-37, 45-46.) FMG's alleged liability is thus inseparable from the employment relationship the Agreement governs. (*Metalclad Corp. v. Ventana Environmental Organizational Partnership* (2003) 109 Cal.App.4th 1705, 1713.)

FMG may compel arbitration as a non-signatory under equitable estoppel and agency.

The UCL Claim for Public Injunctive Relief

Plaintiff separately contends that the second cause of action under the Unfair Competition Law claim cannot be compelled because it seeks public injunctive relief. The Court agrees in part. Under *McGill v. Citibank, N.A.* (2017) 2 Cal.5th 945, a predispute arbitration agreement is invalid and unenforceable insofar as it waives a party's statutory right to seek public injunctive relief in any forum; that rule rests on California public policy and is not preempted by the Federal Arbitration Act. (Id. at pp. 951-952, 961-964; see *Broughton v. Cigna Healthplans* (1999) 21 Cal.4th 1066; *Cruz v. PacifiCare Health Systems, Inc.* (2003) 30 Cal.4th 303.) Public injunctive relief is relief that by and large benefits the general public, benefiting the plaintiff, if at all, only incidentally or as a member of the public. (*McGill*, at p. 955; *Mejia v. DACM Inc.* (2020) 54 Cal.App.5th 691, 702-703.)

Plaintiff's requested injunction — directing FMG to obtain proper licensure or cease exerting substantial influence over gaming operations at a card room open to the public — is public injunctive relief. (Complaint, Prayer ¶ 7; ¶¶ 53-57.)

The Agreement cannot be read to permit an arbitrator to award that relief. It provides that arbitration "shall proceed solely on an individual basis in order to resolve private disputes between Employer and Employee," and that "[t]he arbitrator's authority to resolve and make written awards is limited to claims between Employee and Employer alone." (Saidiner Decl., Ex. A.) An

arbitrator so confined could not enjoin FMG's conduct for the benefit of the general public.

The remedy is not denial of the motion. McGill invalidates the Agreement only "insofar as" it operates to waive public injunctive relief (McGill, at pp. 951-952.) The Agreement contains no provision making the arbitration clause non-severable, and it directs that a court "should administer, modify, or interpret it . . . as to render it enforceable" (Saidiner Decl., Ex. A).

Accordingly, the request for public injunctive relief under the second cause of action is not arbitrable and shall remain in this Court. All remaining claims are compelled to arbitration. FMG's suggestion that Plaintiff lacks UCL standing goes to the merits of that claim, not to arbitrability, and the Court does not reach it.

Conclusion

The Agreement is valid, enforceable, and its existence is undisputed. Plaintiff's claims are intimately founded in and intertwined with the employment relationship the Agreement governs, and FMG, though a non-signatory, may enforce the Agreement under the doctrines of equitable estoppel and agency.

The motion is therefore GRANTED IN PART and DENIED IN PART. Plaintiff is ordered to arbitrate all claims against FMG, except that the request for public injunctive relief under the second cause of action is not arbitrable and remains in this Court.

The action is stayed pending completion of the arbitration. (Code Civ. Proc., § 1281.4.)

The Court sets a Post-Arbitration Status Conference for July 30, 2027 at 8:30 a.m. A Joint Status Report is due 5 court days in advance.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.